

21STCV32131 21STCV32131

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 21STCV32131 Hearing Date: September 17, 2026 Dept: 512

HEARING DATE: Thurs., September 17, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Upchurch,

et al. v. BC Design &

Development, et al.

CASE NUMBER: 21STCV32131

NOTICE: OK

PROCEEDINGS: MOTION

FOR NEW TRIAL

MOVING PARTY: Plaintiffs

Derrick R. Upchurch and Sari M. Upchurch

RESP. PARTY: Defendants BC Design and Development,

Inc. and Bradley Alan Couch

MOTION FOR NEW TRIAL

(CCP §§ 657, 663)

TENTATIVE RULING:

Plaintiffs Derrick R. Upchurch and

Sari M. Upchurch's Motion for New Trial is DENIED.

Moving parties are ordered
to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on September 3, 2026 ☐ Late [
] None

REPLY: Filed
on September 10, 2026 ☐ Late ☐ None

ANALYSIS:

I.
Background

On December 17, 2025, the jury entered
a verdict in favor of Plaintiffs Derrick R. Upchurch and Sari M. Upchurch
("Plaintiffs") and against BC Design & Development Inc. and Bradley Alan
Couch ("Moving Defendants").

On June 8, 2026, the Court granted in part and denied in part
Defendants' Motion Seeking (A) to Offset the Jury's Award by the Amounts of
Pre-Verdict Settlements Plaintiffs Received From Alleged Joint Tortfeasors and
(B) Addressing the Impact of BC Design's 998 Offer. (6/8/26 Order.)

On July 20, 2026, Judgment on Special Verdict was entered.

On July

28, 2026, notice of entry of Judgment was served.

On

August 12, 2026, Plaintiffs filed a Notice of Intention to Move for New Trial.

On

August 24, 2026, Plaintiffs filed the instant Motion for New Trial (the "Motion") and request for judicial notice.

On

August 26, 2026, the Court set and served notice of hearing on the Motion.

On

September 3, 2026, Defendants filed an Opposition to the Motion.

On

September 10, 2026, Plaintiffs filed a Reply.

II.

Request
for Judicial Notice

In conjunction with the Motion,
Plaintiffs request the Court take judicial notice of 12/1/25 rulings on motions in limine and the 7/20/26 Judgment on Special Verdict in this matter. (See Motion, RJN, p. 2, Exhs. 1-2.)

The Court GRANTS the request for
judicial notice pursuant to Evidence Code section 452, subdivision (d).

III.

Legal
Standard

Pursuant to Code of Civil
Procedure section 657, a motion for a new trial may be granted if there is
any:¿¿

¿ 1. Irregularity in the proceedings of the court, jury
or adverse party, or any order of the court or abuse of discretion by which

either party was prevented from having a fair trial.

...

5. Excessive or inadequate damages.

6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

7. Error in law, occurring at the trial and excepted to by the party making the application.

¿

(Code Civ. Proc., § 657, subds. (1), (5)-(7).)

Further :

When a new trial is granted, on all or part of the issues, the court shall specify the ground or grounds upon which it is granted and the court's reason or reasons for granting the new trial upon each ground stated.

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision.

(Code Civ. Proc., § 657.)

A motion for new trial "shall be heard and determined by the judge who presided at the trial; provided however, that in case of the inability of such judge or if at the time noticed for hearing thereon he is absent from the county where the trial was had, the same shall be heard and determined by any other judge of the

same court.” (Code Civ. Proc., § 661.)

In the context of a nonjury trial, a trial court “may, on such terms as may be just, change or add to the statement of decision, modify the judgment, in whole or in part, vacate the judgment, in whole or in part, and grant a new trial on all or part of the issues, or, in lieu of granting a new trial, may vacate and set aside the statement of decision and judgment and reopen the case for further proceedings and the introduction of additional evidence with the same effect as if the case had been reopened after the submission thereof and before a decision had been filed or judgment rendered. Any judgment thereafter entered shall be subject to the provisions of sections 657 and 659.” (Code Civ. Proc., § 662.)

This power is slightly curtailed when a new judge—i.e., a judge who did not preside over the nonjury trial—hears the new trial motion. Specifically, “ [It] has been repeatedly held that the court retains power to amend or change the conclusions of law so as to point to a different judgment, and to enter a judgment different from the first announced, and that this power continues until the entry of the judgment and such change may be made by a judge other than the one who tried the cause.’ ” (Kelly v. Sparling Water Co. (1959) 52 Cal.2d 628, 633, emphasis in original.)

“The right to a new trial is purely statutory, and a motion for a new trial can be granted only on one of the grounds enumerated in the statute.” (Fomco, Inc. v. Joe Maggio, Inc. (1961) 55 Cal.2d 162, 166.) Since new trial motions are “ ‘creatures of statute,’ ” the “ ‘procedural steps for making and determining such a motion are mandatory and must be strictly followed,’ ” or else the court acts in excess of jurisdiction. (Maroney v. Iacobsohn (2015) 237 Cal.App.4th 473, 484-485.)

IV.

Discussion

A.

Timeliness

Code of Civil Procedure section 659 states:

(a) The party intending to move for a new trial shall file with the clerk and serve upon each adverse party a notice of their intention to move for a new trial, designating the grounds upon which the motion will be made and whether the same will be made upon affidavits or the minutes of the court, or both, either:

(1) After the decision is rendered and before the entry of judgment.

(2) Within 15 days of the date of serving notice of entry of judgment by the clerk of the court pursuant to Section 664.5, or service upon them by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest; provided, that upon the filing of the first notice of intention to move for a new trial by a party, each other party shall have 15 days after the service of that notice upon them to file and serve a notice of intention to move for a new trial.

(b) That notice of intention to move for a new trial shall be deemed to be a motion for a new trial on all the grounds stated in the notice. The times specified in paragraphs (1) and (2) of subdivision (a) shall not be extended by order or stipulation or by those provisions of Section 1013 that extend the time for exercising a right or doing an act where service is by mail.

(Code Civ. Proc., § 659.)

Here, Plaintiffs filed a notice of intention to file the new trial motion on August 12, 2026, and judgment was served on July 28, 2026. Thus, the Motion is timely.

B.

Parties' Arguments

Plaintiffs move for new trial pursuant to Code of Civil Procedure section 657, subdivisions (1), (5)-(7) on the grounds that there was irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial; inadequate damages; insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law; and error in law. (Code

Civ. Proc., § 657, subds. (1), (5)-(7).) Specifically, Plaintiffs state the damages award is inadequate and not supported by the weight of the evidence as shown by the jury's "wholesale" adoption of Defendants' expert, McCormick's, calculation "to the penny" (Motion, pp. 7-8); the Court abused its discretion by excluding impeachment evidence of Couch's "contractor-licensing disciplinary matters from 1989, 1991, and 1994 ... and prohibiting his prior inconsistent statements about the matter from reaching the jury" (Motion, pp. 8-9); the evidence was insufficient to support the jury's finding that Couch's negligence was not a substantial factor in causing Plaintiff's harm; and the "jury's finding that Plaintiffs would not have behaved differently if the statutory violations underlying the concealment claims had been disclosed is unsupported." (Motion, pp. 10-11, capitalization omitted.)

In support of the Motion, Plaintiffs submit the judicially noticed materials discussed above as well as a declaration from Plaintiff's counsel; copies of Trial Exhibits 140 and 142; and copies of Trial Exhibit 381 and McCormick's trial testimony in the Reporter's Transcript. (Motion, Stemple Decl., Exhs. A-B.)

In Opposition, Defendants state that the Motion should be denied in its entirety as the jury had ample and clear evidence to support its damages award, and Plaintiffs are merely dissatisfied with the lower judgment amount; the Court properly exercised its discretion in excluding Couch's decades-old disciplinary matters that "had nothing to do with the claims in this case"; the jury's award was supported by expert evidence, and the jury was entitled to reject Plaintiffs' expert's calculation; Plaintiffs' critiques regarding the defense expert McCormick were presented to and rejected by the jury; case law relied upon by Plaintiffs to support their arguments are distinguishable from the instant matter; and the jury "was entitled to find that Plaintiffs failed to prove reliance and causation on the misrepresentation and concealment claims. (Opp., pp. 1-9.) Finally, Defendants state that Plaintiffs have not met their burden to show that the jury clearly should have reached a different result. (Opp., p. 9.)

In Reply, Plaintiffs state that the jury's adoption of McCormick's "estimate confirms the damages award is against the weight of the evidence" and implores the Court to act as the "thirteenth juror" and evaluate the two experts' testimony to find that the jury clearly should have awarded a figure substantially higher than \$366,440.76. (Reply, pp.

2-4.) Further, Plaintiffs state Defendants' characterization of the evidence is unsupported, and Plaintiffs emphasize that the disciplinary evidence regarding and cross-examination of Couch's inconsistent statements excluded by the Court was error. (Reply, pp. 4-8.) Finally, Plaintiffs emphasize that the jury's finding that Couch's negligence was not a substantial factor in causing Plaintiff's damages is factually inconsistent, and the jury had no grounds to reject Sari Upchurch's uncontradicted testimony that "had she known of the statutory down payment limitation, she would have paid a smaller amount and questioned Couch." (Reply, pp. 9-10.) Plaintiffs file an additional declaration and exhibits in support of the Reply.

C.

Analysis

As

an initial matter, the Court first highlights that the instant Court, Judge Karine Mkrtchyan, was not the Court that presided over the trial in this matter. " '[It] has been repeatedly held that the court retains power to amend or change the conclusions of law so as to point to a different judgment, and to enter a judgment different from the first announced, and that this power continues until the entry of the judgment and such change may be made by a judge other than the one who tried the cause.' " (Kelly, *supra*, 52 Cal.2d at p. 633, emphasis in original.)

Turning

to the merits of the Motion, the Court does not find that Plaintiffs have demonstrated an order granting a new trial is warranted.

First,

the damages award is supported by expert testimony and is not clearly inadequate. (See Code Civ.

Proc., § 657, subds. (5)-(6).) Plaintiffs provide no legal authority mandating that the jury must have "split the difference between the competing experts, discount either figure, or otherwise show independent adjustment" to arrive at their damages award (see Motion, pp. 7-8), and the evidence presented by Plaintiffs demonstrate that the jury award pulled expressly from Defendants' expert testimony and calculation. (See Motion, pp. 7-8, Stemple Decl., Exh. C, RJN, Exh. 2.) Further, the Court does not find that the record before it demonstrates that the jury clearly should have credited

Plaintiffs' expert instead of Defendants', especially as the Motion does not provide any evidence of demeanor or manner of testifying regarding the parties' experts. (See *Meiner v. Ford Motor Co.* (1971) 17 Cal.App.3d 127, 140-141 [“ ‘ “The best and most accurate record is like a dehydrated peach; it has neither the substance nor the flavor of the fruit before it was dried.” It resembles a pressed flower.’ [Citation.] ‘The cold record cannot give the look or manner of the witnesses; their hesitations, their doubts, their variations of language, their precipitancy, their calmness or consideration. A witness may convince all who hear him testify that he is disingenuous and untruthful, and yet his testimony when read, may convey a most favorable impression. [Citation.] ‘There are many factors aiding in a reasonable conclusion which are presented to the trier of facts in the first instance and not available to one going over the cold record. There is what might be called the “feel” of the case. This embraces a consideration of the witnesses, the manner in which they testify and their general attitude in the court room’ ”].)])

Further,
the Court does not find that the legal authority relied upon by the Plaintiffs is either binding or persuasive for the Court to find otherwise. (See *ibid.*; *Mercer v. Perez* (1968) 68 Cal.2d 104.) Indeed, Plaintiffs' cases are factually distinguishable from the instant circumstances.

As the Second
District Court of Appeal has upheld, and as this Court so too follows: this Court has “no power to act as a super juror and substitute its personal opinion for that of the jurors.... To do otherwise would impoverish our system of justice.” (See *Huy Fong Foods, Inc. v. Underwood Ranches, LP* (2021) 66 Cal.App.5th 1112, 1126.)

Next,
the Court does not find that the Court's exclusion of impeachment evidence regarding Couch was legal error. (See Code Civ. Proc., § 657, subd. (7).) The Court provided the following reasoning for excluding the evidence of Couch's disciplinary actions: “The 1989, 1991, and 1994 matters raised by Plaintiffs are excluded under Evidence Code 352. They are remote in time and of little relevance to the issues here. That Defendant testified at his deposition inaccurately about these matters does not sufficiently tip the balance under Evidence Code 352.” (Motion, RJN, Exh. 1.) The Court finds the Court's rationale and the exclusion of the evidence itself comports with the discretion afforded under Evidence Code section 352 and the appropriate factors to be considered. (See Evid. Code, § 352.)

Third, the

Court does not find that the evidence is insufficient to support the jury's finding that Couch's negligence was not a substantial factor in causing Plaintiffs' harm and, moreover, Plaintiffs fail to point to any evidence in the record to support that the Court find otherwise. (See Code Civ. Proc., § 657, subd. (6); Motion, p. 10.)

The Court reiterates that “ ‘[t]he cold record cannot give the look or manner of the witnesses; their hesitations, their doubts, their variations of language, their precipitancy, their calmness or consideration. A witness may convince all who hear him testify that he is disingenuous and untruthful, and yet his testimony when read, may convey a most favorable impression. [Citation.] ‘There are many factors aiding in a reasonable conclusion which are presented to the trier of facts in the first instance and not available to one going over the cold record. There is what might be called the “feel” of the case. This embraces a consideration of the witnesses, the manner in which they testify and their general attitude in the court room.’ ” (Meiner, *supra*, 17 Cal.App.3d at pp. 140-141.) The Court does not find that the record before the Court demonstrates that the jury clearly should have found Sari Upchurch's testimony dispositive of this issue. Rather, the jury could have found Sari Upchurch's testimony regarding this issue lacking in some way, for instance in credibility, and made the determination it did in the Special Verdict.

Additionally, the Court notes that “[t]he purpose of Code of Civil Procedure section 657 is not to give the trial court permission to run roughshod over a party's constitutional right to jury determination. Instead, the purpose is to allow the trial court to grant a new trial on those rare occasions when the jury's verdict is so at odds with any reasonable view of the evidence that judicial intervention is required to avoid a manifest miscarriage of justice.” (See *Huy Fong Foods, Inc.*, *supra*, 66 Cal.App.5th at p. 1126.)

For all these reasons, the Court does not find that Plaintiffs have shown that a new trial is warranted. Thus, the Motion is DENIED.

V.

Conclusion

& Order

For the foregoing reasons, Plaintiffs

Derrick R. Upchurch and Sari M. Upchurch's Motion for New Trial is DENIED.

Moving parties are ordered

to give notice.